

Line 3

Case Name: *Rina Panigrahy, et al. v. Archbishop Mitty High School, et al.*

Case No.: 25CV481631

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant City of San Jose (“City”) demurrers under Code of Civil Procedure Section 430.10(e) and 430.10(f) to the Complaint filed on December 11, 2025 by Plaintiffs Prina Panigrahy, Arunima Panigrahy, and Sapna Rao (“Plaintiffs”) on the grounds that the Complaint is uncertain and fails to state facts sufficient to constitute a cause of action against a public entity. Notice of Demurrer (the “Demurrer”) at 1:21-2:6 (filed: Jan. 27, 2026).

The Demurrer came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the Complaint, Plaintiffs are homeowners residing on Forest View Drive in San Jose, directly adjacent to Archbishop Mitty High School (“Archbishop Mitty”). Archbishop Mitty is constructing a new soccer field score board that is approximately seventeen feet from Plaintiffs’ backyard fence. The proximity and visibility of such a large, illuminated structure can not only have a negative effect on nearby home values, it can also reduce privacy, disrupt residential character, and alter the view from the backyards. (Complaint, Exhibit A)

Plaintiffs initiate this action on December 11, 2025, alleging causes of action for (1) resulting damages from construction activities, (2) short term effects related to cleaning and inconvenience, and (3) long term effects related to effect on property value. (Complaint, PLD-C-001 ¶¶ 8, 9)

II. Legal Standard on Demurrer

“The party against whom Complaint or cross-Complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom Complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated

therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a Complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the Complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Ibid.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the Complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the Complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Ibid.*) “A demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a Complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a Complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Under California law, even if a demurrer is sustained, leave to amend the Complaint is routinely granted. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the Complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Analysis of the Demurrer

Defendant contends the Complaint is not viable because: (1) it is uncertain and unintelligible under Code of Civil Procedure section 430.10(f); (2) the City is immune from liability under Government Code section 815 because Plaintiffs fail to cite a statutory basis for recovery; and (3) Plaintiffs failed to allege compliance with the Government Claims Act’s claim-presentation requirements.

While Plaintiffs oppose the demurrer, they do not cite any legal authorities in the support of their arguments. California Rules of Court, rule 3.1113 requires a memorandum that “contain[s] a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (California Rules of Court, Rule 3.1113(b); emphasis

added.). Therefore, a party's failure to provide a memorandum as required by the Rule may be considered an "admission that the [opposition] is without merit and cause for its denial." (Cal. Rules of Court, Rule 3.1113(a), (b); *In re Marriage of Falcone & Fyke* (2012) 203 Cal.App.4th 964, 976.)

Setting Plaintiffs' non-compliance with rule 3.113 aside, Plaintiffs' Complaint is still subject to demurrer on three independent grounds:

1. The Complaint is uncertain and unintelligible
2. The City is immune from liability absent a statutory basis for recovery
3. Plaintiffs fail to allege compliance with the Government Claims Act

A. The Complaint is Uncertain and Unintelligible

California Rules of Court, rule 2.112 requires that each separately stated cause of action or count specifically state its number (e.g., first cause of action), its nature, the party asserting it, and the party/parties to who it is directed at. .” (Rules of Court, rule 2.112.)

Code of Civil Procedure section 425.10 requires a Complaint to contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code. Civ. Proc. § 425.10(a).)

Plaintiffs' Complaint violates both Code of Civil Procedure section 425.10 and California Rules of Court, rule 2.112 by failing to delineate separate causes of action, identify which cause of action is directed against which defendant, or coherently reference any provision or principle of law that was allegedly violated.

The Complaint lists “[r]esulting damages from construction activities,” “[s]hort term effects related to cleaning and inconvenience,” and “[l]ong term effects related to new permanent structure next to homes and effect on property value” as causes of action. (Complaint, PLD-C-001, ¶¶ 8, 9) These describe a category of injury, not a legal theory of recovery. The one-page attachment enumerates various alleged harms—property value degradation, visual impact, privacy concerns, lack of notification, short-term construction effects—but never specifies whether these constitute claims for nuisance, inverse condemnation, constitutional violations, or violations of specific municipal code provisions. (Complaint, Exhibit A)

While demurrers for uncertainty are strictly construed and generally disfavored because ambiguities can be clarified through discovery, the uncertainty here goes beyond mere ambiguity. (See, *Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) The Complaint is so inadequately organized that the City cannot reasonably determine what legal claims it must defend against or which factual allegations apply to it as opposed to the Archbishop Mitty. Plaintiffs sue both a quasi-public school and a governmental entity, yet the Complaint contains no differentiation between claims against each defendant.

Although a Complaint can withstand a demurrer for uncertainty if it clearly sets forth the facts relied upon, Plaintiffs' Complaint fails even this lenient standard. The Complaint does not specify whether Plaintiffs allege the City negligently approved a permit, violated mandatory duties under municipal code, took property without compensation, or committed some other actionable wrong. The City is entitled to know the legal nature of the claims against it, not merely that Plaintiffs object to a construction project.

The opposition brief attempts to cure these deficiencies by identifying specific municipal code provisions governing signs and quasi-public land uses. (Opposition at 2:19-4:21) But these arguments cannot be considered on demurrer because they appear nowhere in the Complaint itself. To rule on a demurrer, the Court evaluates only the allegations in the pleading and all matters judicially noticeable, not arguments raised for the first time in opposition. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

B. The City is Immune from Liability Absent a Statutory Basis for Recovery

Even if the uncertainty defect was overlooked, the Complaint still remains unviable. Government Code section 815 provides that a public entity is not liable for any injury except as otherwise provided by statute. (Gov. Code § 815) Plaintiffs bear the burden of alleging a statutory basis for recovery, and their Complaint contains no such allegation.

Plaintiffs' opposition identifies number of San Jose Municipal Code provisions governing signs and setbacks. (Opposition at 2:19-4:21) But none of these provisions creates a private right of action or otherwise establishes a statutory basis for money damages against the City. Municipal code provisions regulating land use and permits generally establish standards for governmental decision-making; they do not automatically confer tort liability when a permit is issued that a neighbor believes violates the code.

To state a claim against the City, Plaintiffs must identify a statute that imposes liability on public entities for the type of injury alleged. For example, claims for dangerous conditions of public property are governed by Government Code sections 835; claims for injuries caused by public employees are governed by sections 815.2 and 820; and claims for mandatory duty violations are governed by section 815.6. Plaintiffs cite none of these statutes and do not explain how the alleged permit approval constitutes a dangerous condition, employee negligence, or breach of mandatory duty giving rise to liability.

Plaintiffs appear to contend that the City violated its own municipal code by approving the scoreboard permit without adequate consideration of neighbor impacts. (Opposition at 2:19-4:21) Even accepting this allegation as true, violation of a municipal code provision does not itself establish tort liability against the governmental entity absent a separate statutory basis for such liability. Government Code section 815 forecloses common-law tort liability against public entities; only statute-based claims are

cognizable.

The opposition's references sign regulations in Union City, Temple City, and Santa Cruz County are inapplicable. (Opposition at 4:1-21) These provisions govern different jurisdictions and do not establish that San Jose's Municipal Code creates a private damages remedy. Moreover, even if San Jose's sign code required aesthetic review or neighborhood notification, Plaintiffs have not pleaded any statute making the City liable in damages for alleged noncompliance with its own code.

C. Plaintiffs Fail to Allege Compliance with the Government Claims Act

"Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented...until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board. . . ." (Gov't. Code, § 945.4.)

A failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738.) A Complaint is subject to attack by demurrer if the plaintiff fails to include allegations that the plaintiff complied with the claims presentation requirement or that a recognized exception or excuse for noncompliance exists. (See *Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 338.)

Plaintiffs' Complaint does not allege that they filed a claim with the City before filing suit. The Judicial Council form specifically asks whether the plaintiff is required to comply with claims statutes and whether the plaintiff has complied, but Plaintiffs left this section blank. The one-page attachment contains no allegation regarding claim presentation. (Complaint, PLD-C-001 ¶ 5; Exhibit A)

Plaintiffs' alleged injuries—property value diminution, aesthetic harm, privacy invasion, and construction-related disruption—do not fall within the statutory exceptions to the claims-presentation requirement enumerated in Government Code section 905. Therefore, without an allegation of compliance or excuse, the Complaint fails to state a claim subject to the Government Claims Act.

D. The Court Gives Plaintiff Leave to Amend Their Complaint Within 10 Days of Today to Try to Cure The Pleading Deficiencies Identified In this Order.

While it might be unlikely that Plaintiffs will be able to fix, through an amending pleading, the multiple pleading deficiencies discussed above in this Order, the Court does not find *at this point* that this Complaint shows on its face that it is *incapable* of amendment. So under the liberal amendment-of-pleadings standards of California law (*McDonald*, 180 Cal. App. 3d at 303-304, *supra*), the Court gives Plaintiffs **LEAVE** to file **within 10 days from today** a First Amended Complaint that tries to cure these defects

(if Plaintiffs choose to do so). And so, in the generous spirit of fairness and liberality of California law, the Court gives Plaintiffs this one full and fair chance to correct these defects.

IV. Conclusion & Order

Defendant's Demurrer to the Complaint is **SUSTAINED WITH LEAVE TO AMEND WITHIN 10 DAYS OF TODAY.**

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *J.C. v. Watchtower Bible and Tract Society of New York, Inc., et al.*

Case No.: 22CV407932

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Watchtower Bible and Tract Society of New York, Inc. (“Watchtower”) moves under Code of Civil Procedure Section 437c for Summary Judgment against Plaintiff J.C. on the ground that Watchtower is entitled to summary judgment as a matter of law because Plaintiff cannot establish all of the elements of her Third Cause of Action for Negligence of Plaintiff’s Second Amended Complaint (“SAC”).¹ Notice of Motion (the “Motion”) at 2:4-11 (filed: Jan. 26, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Posture

Plaintiff, J.C.,² brings this Second Amended Complaint (“SAC”) against Defendants Watchtower, West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”), Sean A. Mackey (“Mackey”), and Does 4 through 60 (collectively, “Defendants”) for incidents of childhood sexual assault perpetrated by Mackey against Plaintiff, while Plaintiff was a minor. (SAC, ¶¶ 1-2.)

Watchtower is a religious nonprofit corporation that supervised and exercised control over Plaintiff’s abuser, Mackey. (SAC, ¶¶ 6-7.) West Congregation (collectively with Watchtower, “Church Defendants”) is a nonprofit California corporation, owned, controlled, directed, and operated by Watchtower, which included the church, West Congregation, that Plaintiff attended and the property where the unlawful acts of childhood sexual assault occurred. (*Id.* at ¶ 11.)

Watchtower was responsible for finalizing the appointments of Elders and Ministerial Servants, including Mackey, from its headquarters in New York. (SAC, ¶¶ 7-8, 15.) The managing agents directing and setting the corporate policies of the Church Defendants was a group of individuals known as the “The Governing Body.” (*Id.* at ¶ 10(a).) The Governing Body established, approved, and disseminated all the

¹ The Third Cause of Action for Negligence is the *only* cause of action brought against Defendant Watchtower in the SAC.

² J.C. is not Plaintiff’s actual name, but a fictitious name used to protect her privacy. (See SAC, ¶ 5.)